NIMBUSFLOW SOFTWARE, INC.
SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT: PRO PLAN

This Software as a Service Subscription Agreement (the "Agreement") is entered into as of the date of Customer's acceptance (the "Effective Date") by and between NimbusFlow Software, Inc., a Delaware corporation ("Provider"), and the individual or entity accepting these terms ("Customer"). By clicking "I Agree," executing an order form, or accessing the Service, Customer acknowledges that it has read, understood, and agreed to be bound by this Agreement.

1. DEFINITIONS

1.1 "Service" means Provider's hosted software platform, including all updates, modifications, and associated documentation, made available to Customer under the Pro Plan.

1.2 "Subscription Term" means each monthly period during which Customer maintains an active subscription, as defined in Section 4.

1.3 "Fees" means all amounts payable by Customer under this Agreement, including the Monthly Subscription Fee and any applicable taxes.

2. GRANT OF LICENSE AND ACCESS

2.1 Subject to the terms of this Agreement and Customer's timely payment of all Fees, Provider grants Customer a limited, non-exclusive, non-transferable, non-sublicensable right to access and use the Service during the Subscription Term solely for Customer's internal business purposes.

2.2 Customer shall not (a) copy, modify, or create derivative works of the Service; (b) reverse engineer, decompile, or disassemble the Service; (c) resell or sublicense access to the Service; or (d) use the Service in violation of applicable law. Provider reserves all rights not expressly granted herein.

3. FEES AND BILLING

3.1 *Monthly Subscription Fee.* Customer shall pay Provider a recurring subscription fee of eighty-nine dollars ($89.00) per month (the "Monthly Fee"), billed in advance on the same calendar day each month, using the payment method on file.

3.2 *Rate Stability.* The Monthly Fee shall remain at eighty-nine dollars ($89.00) for as long as Customer maintains continuous, uninterrupted subscription to the Service. Provider shall not increase the Monthly Fee applicable to Customer's subscription absent Customer's express written consent.

3.3 *Late Payments.* Amounts not paid when due shall accrue interest at the lesser of 1% per month or the maximum rate permitted by law. Provider may suspend the Service upon ten (10) days' notice of non-payment.

3.4 *Taxes.* Fees are exclusive of all sales, use, VAT, and similar taxes, which shall be borne by Customer.

3.5 *Refunds.* Monthly Fees already paid for the current billing period are non-refundable, except where required by applicable law. Upon cancellation, Customer shall not be charged for any subsequent billing period.

4. TERM AND TERMINATION

4.1 *Term.* This Agreement commences on the Effective Date and continues on a month-to-month basis. Each monthly billing period constitutes a separate Subscription Term, and Customer is under no minimum commitment.

4.2 *Termination for Convenience.* Customer may terminate this Agreement at any time, for any reason or no reason, by providing Provider with at least seven (7) days' written notice. Written notice may be delivered by email to the address designated in Customer's account settings or through the account management interface of the Service. Termination shall take effect at the end of the then-current billing period, provided notice is received at least seven (7) days prior to the next billing date.

4.3 *No Early Termination Fee.* Customer shall not be subject to any early termination fee, cancellation fee, or penalty of any kind in connection with termination under this Section.

4.4 *Termination for Cause.* Either party may terminate this Agreement upon thirty (30) days' written notice of a material breach that remains uncured. Provider may terminate immediately for non-payment following the cure period described in Section 3.3.

4.5 *Effect of Termination.* Upon termination, Customer's access shall cease at the end of the then-current billing period, and Customer may export Customer Data for thirty (30) days thereafter, after which Provider may delete such data. Sections 3, 5, 7, and 8 survive termination.

5. CONTINUATION OF SUBSCRIPTION

5.1 *Continuation.* Unless terminated in accordance with Section 4, this Agreement shall continue automatically from month to month at the Monthly Fee stated in Section 3.1. Continuation of the subscription shall not result in any increase in the Monthly Fee, and no renewal shall impose a minimum commitment period.

5.2 *Pricing Changes.* Provider may offer new or modified plans at different price points; however, Customer's existing subscription shall remain governed by the Monthly Fee set forth herein unless Customer affirmatively elects to change plans.

5.3 *Reminders.* Provider shall endeavor to send Customer a courtesy notice of upcoming billing dates, though failure to do so shall not affect Customer's obligations hereunder.

6. WARRANTIES AND DISCLAIMERS

6.1 THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE." PROVIDER DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. PROVIDER DOES NOT WARRANT THAT THE SERVICE WILL BE UNINTERRUPTED OR ERROR-FREE.

7. LIMITATION OF LIABILITY AND INDEMNIFICATION

7.1 IN NO EVENT SHALL PROVIDER BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES. PROVIDER'S AGGREGATE LIABILITY SHALL NOT EXCEED THE FEES PAID BY CUSTOMER IN THE THREE (3) MONTHS PRECEDING THE CLAIM.

7.2 Customer shall indemnify, defend, and hold harmless Provider from any third-party claims arising from Customer's unlawful use of the Service or breach of this Agreement.

8. GENERAL PROVISIONS

8.1 This Agreement is governed by the laws of the State of Delaware, without regard to conflict-of-law principles. Any dispute shall be resolved by binding individual arbitration, and Customer waives any right to participate in a class action.

8.2 This Agreement constitutes the entire agreement between the parties. Provider may amend this Agreement upon thirty (30) days' notice to Customer, during which Customer may terminate without penalty. If any provision is held unenforceable, the remainder shall remain in effect.